# Noesis ten documents: what each is, version tracker, and where each stands

Versions tracked: **V1** 21 to 22 Oct; **V2** "For Final Revision", 3 to 4 Nov; **V3** "Draft for review", 8 Nov (Shane's decisions of 8 Nov). Statutory references are the documents' own and are not verified by Cuan. CRO numbers accepted as given.

| # | Document | What it is, in plain terms | Cuan read | Main changes V1 to V2 (3 to 4 Nov) | Changed V2 to V3 (8 Nov) | Top blockers now (8 Nov) |
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| **1** | Master Brief | Explanatory memo of the whole scheme (to partners, advisers); not an instrument. | V1, V2. **V3 not seen** | Five registered companies named; Odin Labs and Tairseach future; new cap table 86/8/6; Asterial 97/3; shares first, IP second, no valuation. | Not seen. Must match the 8 Nov Asterial 85/5/10 and drop the 30/35% R&D credit clash. | 8 Nov version missing from John's folder; printed date 2 Nov; "Memorandum" or "Master Brief". |
| **2** | Control Sheet | The protocol: step order, live-company register, cap table, transfer locks, IP price. | V1, V2, V3 | Valuation gate removed; four-step order; Mac Enterprises carve-out; seven transfer locks; IP price "1 or 10". | IP price one bracket (EUR 10, unapproved); Asterial 85/5/10; planned names removed; Cleanroom Sandbox. | IP price bracketed; tax route "dangerous"; s238 at Step 1 but inside Step 3 deeds; no Secretary; Doc 10 signed too late. |
| **3** | Asterial Constitution | Public constitution of Asterial Ltd (804907). | V1, V2. **V3 not seen** | Asterial Limited; three classes; 10-year sunset removed; 36-month moratorium; Noesis 970,000 A, Shane 30,000 B. | Not seen. Must show 85/5/10 (Noesis 850,000 A; Shane 50,000 B; Diarmuid 100,000 non-voting B). | 8 Nov version missing; still showed 97/3 in V2; non-existent Art 12.2 cited. |
| **4** | Noesis Constitution | Public constitution of Noesis AI Agent System Ltd (805939). | V1, V2, V3 | Four classes A, B, C, F; old voting "Partner" shares become non-voting B; leaver rules rewritten; dividend policy adjustable. | Percentages and share counts removed; Art 6.4 fixed; succession (Art 6.1); Mac Enterprises not named. | Brackets in Art 6.1(d); no authorised capital; Good Leaver undefined; subscriber and seal blocks; review boxes to strip. |
| **5** | Charter | Group charter: the five companies and the Founder. | V1, V2, V3 | Parties widened to five live companies; Scenario B EUR 0 to 1 plus 36-month licence; arbitration; Mac Enterprises clause. | Scenario B EUR 1 plus 36-month SLA throughout; Sandbox; no grant-back; planned names out. | Step 1 and Step 2 recital conflict; arbitrator chosen by Class A Director; undefined Mac Enterprises and repositories. |
| **6** | Shareholders' Agreement | Private agreement among shareholders; executive awards; drag and tag. | V1, V2, V3 | Widened to Noesis and Asterial; executive pathway set out; reverse vesting 36 to 12 months on half; drag/tag (Asterial only). | Scenario B EUR 1; Sandbox; 86/8/6 still stands; Y2/Y3 Class C arithmetic does not reconcile. | Undated; Good Leaver and leaver prices; circular references cl 1(b), 7(d); no vesting mechanics, pre-emption or NOESIS drag/tag. |
| **7** | IP Assignment | Shane and Velocity assign IP to Asterial. | V1, V2, V3 | Price EUR 10 paid to the Assignors; Odin Labs and Tairseach seals removed. | IP price one bracket; Future Rights Cut-Off (cl 2.1); Sandbox. | No date; price and tax route; defective s238 approvals; "Assigned IP" undefined; contributor assignments missing. |
| **8** | Umbrella Licence | Asterial licenses IP to group companies; Ring 1 never outside the group. | V1, V2, V3 | Quarantine gate; liability cap (12 months' royalties); Scenario B EUR 1 plus SLA. | Scenario B EUR 1 plus SLA throughout; "never licensed outside the group" stated with the Asterial Acquisition exception. | No payment, term, termination, confidentiality or GDPR Art 28 terms; empty service level; no rate card; Reg (EU) 2026/877 citation unverified. |
| **9** | Chain-of-Title and R&D Deed | Warranties of authorship and no open-source contamination; R&D deed. | V1, V2, V3 | Widened; Shane and Velocity warrant sole authorship; Odin Labs removed. | IP price one bracket; Scenario B EUR 1; Sandbox. | Shane's personal uncapped warranties; no asset schedule; wrong tax sections; two companies bound but not signing. |
| **10** | Tax Schedule and Rider | Directive: tax steps in order, and the investor rider. | V1, V2, V3 | Steps reversed (shares Step 2, IP Step 3 at EUR 10); Odin Labs and Tairseach removed; rider to 8 paragraphs. | IP price one bracket; Sandbox; Rider under Shane's review. | Tax model unfinished; only two of five companies seal; signed at Step 4 though it directs Steps 1 to 3; independent witness. |

# Comment: what Cuan tracks, and Pat's position

## 1. Is Cuan tracking Shane's changes?

**Yes, version by version, with limits.** I have read all ten at V1 and V2 (comparison written 4 and 5 Nov), and Documents 2 and 4 to 10 at V3 (8 Nov), compared with V2 and with my 5 Nov execution checklist. The table above is that record.

**Limits, stated plainly:** (a) **Documents 1 and 3 at V3 are not in John's folder, so I have not seen them**; (b) I read the text only: Drive comments, tracked changes and page images were not read; (c) I compared by reading, not by a word-by-word automatic comparison, so a small change in wording could be missed; (d) I do not have a running log of every intermediate save by Shane, only the three dated versions; (e) statutory references and CRO numbers are Shane's and not verified.

**Fix:** ask Shane to resend V3 Documents 1 and 3 to John (Shane sent all ten to Pat on 8 Nov, so Pat has them and I do not). Then the tracker is complete, and a word-by-word comparison of V2 against V3 can be run for all ten.

## 2. Pat and the ten documents

**What Pat's email of 9 Nov says (13:47):** he is going through every document "one by one", has read Shane's Review Note several times, and cannot tell which decisions or outputs are wanted from him. He proposes to settle the structure tomorrow and give each item an owner and date.

**Is he seeing the documents for the first time?** I cannot tell. Pat produced his own pack on 28 Oct on the earlier drafts, so he has seen earlier versions; whether he reviewed the 3 to 4 Nov or 8 Nov versions in detail before today I do not know. What is clear is that **he does not have this tracker or Cuan's fix list** (neither has been shared): he has Shane's documents and Shane's Review Note only, so no plain-English description of each document, no change history, and no single list of blockers by document.

**What this tracker would give him:** what each of the ten is (column 3), what changed and when (columns 5 and 6), and the blockers by document (column 7). Together with the fix list (decisions, owners) it answers his request to "remove that uncertainty".

**Suggestion for John's decision:** share this tracker and the fix list with Pat (cc Shane and Tom) before or at the start of tomorrow's meeting, after you have read both. This tracker omits your own position; your private review sheet stays with you.